

#	Case Name	Tentative
50	<i>Amjadi vs. Jolly Berry Law</i>	<i>Motion is off calendar</i> <i>CMC remains on calendar</i>
51	<i>Berkowitz vs. Pelagic, Inc.</i>	<i>Motion is off calendar</i> <i>CMC remains on calendar</i>
52	<i>Escobedo vs. Hyundai Motor America</i>	Defendant moves, under CCP section 397, subdivisions (a) and (c), for an order transferring this case to Imperial County Superior Court. (ROA 24.) The court “has discretionary power to transfer the case to any other county ‘[w]hen the convenience of witnesses and the ends of justice would be promoted by the change.’” (Cal. Prac. Guide Civ. Pro. Before Trial at ¶ 3:553, citing Code Civ. Proc. § 397, subd. (c); <i>Rycz v. Sup.Ct.</i> (2022) 81 Cal.App.5th 824, 836.) In support of its motion, Defendant proffers a declaration from its counsel, whereby counsel attests that the subject sales contract arose in Imperial County, where Plaintiff Arturo Escobedo purchased the subject vehicle from the Imperial Valley Hyundai dealership, which is located at 634 Thomas Lane, El Centro, CA 92243. (ROA 25 [Kurtz Decl. at ¶¶ 2, 4, Exh. A].) The declarant also proffers a copy of the subject vehicle’s repair service history, which reflects that all repairs and/or servicing was performed at the same Imperial Valley Hyundai dealership. (Kurtz Decl. at ¶ 3, Exh. B.) Based on the uncontroverted evidence, the Court finds Orange County is not a “convenient” venue for the witnesses who the parties would reasonably be expected to call. The Court finds the convenience of these witnesses would be best served by transferring this action to the county where the dealership is located, and where the repairs and/or